

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

MARINE TRANSPORT LOGISTICS, INC., *Complainant*

v.

CMA CGM, S.A., *Respondent*.

DOCKET NO. 22-23

Served: October 25, 2024

ORDER OF: Mary A. HERVEY, *Administrative Law Judge*.

ORDER ON TREATMENT OF CONFIDENTIAL MATERIAL

This matter is before the undersigned *sua sponte* upon a finding that certain requirements set forth in the initial order pertaining to the treatment of confidential material have not been satisfied. Specifically, the parties failed to file the motion required by paragraph 19 of the initial order governing the use of confidential material in the proceeding. Additionally, Complainant failed to comply with paragraphs 20 and 21 of the initial order by submitting a fully redacted document in the confidential version of Volume I of its Appendix. For the reasons set forth below, the parties are ordered to cure these deficiencies no later than November 8, 2024.

On September 12, 2022, an initial order was issued that provided detailed instructions about the use and filing of confidential material. It states in pertinent part:

Confidential Material

18. *Stipulation* - The parties may agree and stipulate between themselves regarding treatment of confidential documents and information obtained during discovery that is not filed with the Commission. The parties may, but are not required to, file a courtesy copy of the agreement with the Commission.

19. *Use in the proceeding* – If confidential information is filed in a memorandum or as an exhibit to a dispositive motion or as part of briefing on the merits, it must be accompanied by a motion justifying confidential treatment. This motion must identify each item for which protection is sought and show good cause by demonstrating that the information is a trade secret or other confidential research, development, or commercial information. 46 C.F.R. § 502.141(j)(1). The burden is on the party seeking to protect the information to show good cause for its protection.

20. *Filing* – Parties should file two versions of confidential filings marked as the “confidential version” and the “public version.” The confidential version may be provided to the Presiding Officer by email but should not be filed with the Office of the Secretary by email pursuant to Commission Rule 5. 46 C.F.R. § 502.5.

21. *Marking confidential material* – In the confidential version, confidential information must be conspicuously and clearly marked on each page, for example by highlighting or braces. The public version must indicate on the cover page and on each affected page “Public version – confidential materials excluded.” The public version must clearly indicate any omissions, for example with blackout or braces, and its pagination and depiction of text on each page must be identical to that of the confidential version. For example, the confidential filing may read: “On January 1, 2010, Complainant entered into a {25} year lease with respondent for a monthly rent of {\$1000}.” The public version would read: “On January 1, 2010, Complainant entered into a { } year lease with Respondent for a monthly rent of { }.”

Initial Order at 4-5.

On November 16, 2023, Respondent filed a consent motion requesting entry of a protective order and attached the proposed confidentiality stipulation and protective order. The motion stated that it was filed with the consent of Complainant; the parties agreed to the terms of the protective order; and it would “enable the parties to fully respond to discovery requests, which may cover information and documents that are confidential, proprietary, and/or commercially sensitive.” Motion at 1. On November 17, 2023, the consent motion was granted and the confidentiality stipulation and protective orders entered as orders in this proceeding. Neither the motion nor order addressed the use of confidential material in the proceeding.

On May 14, 2024, Complainant filed confidential versions of its Brief, Appendix Volumes I and II, and Proposed Findings of Fact. On May 17, 2024, Complainant filed public versions of its Brief, Appendix Volumes I and II, and Proposed Findings of Fact. On June 12, 2024, Respondent filed confidential versions of its Opposition Brief, Replies to Complainant’s Proposed Findings of Facts, and Appendix. On June 14, 2024, Respondent filed public versions of its Opposition Brief, Replies to Complainant’s Proposed Findings of Facts, and Appendix. On June 27, 2024, Complainant filed its confidential version of its Response to CMA’s Proposed Findings of Fact and Reply Brief of the Complainant with exhibits. On June 27, 2024, Complainant filed its public version of its Response to CMA’s Proposed Findings of Fact and Reply Brief of the Complainant with exhibits.

Neither party filed a motion justifying confidential treatment showing good cause by demonstrating that “each item” for which protection is sought is a “trade secret or other confidential research, development, or commercial information” in accordance with the initial order. In addition, Complainant failed to comply with paragraphs 20 and 21 of the initial order by submitting a fully redacted document in the confidential version of Volume I of its Appendix. (Complainant’s Exhibit 10, CMA 95419.)

In accordance with the provisions of the initial order governing confidential treatment of material, the parties are directed to submit a motion, either jointly or individually, justifying confidential treatment of any information in the parties' briefs, findings of facts, and exhibits. The motion must identify each item for which protection is sought by Bates stamp number if possible and if not by appendix exhibit number with page and line number, and for each item show good cause by demonstrating that the information is a trade secret or other confidential research, development, or commercial information. The parties may narrow their requests for confidential treatment but may not ask for confidential treatment of additional information.

The parties must submit revised public versions of their appendices, if they narrow the requests for confidential treatment.

Additionally, Complainant is directed to submit a revised confidential version of Appendix Volume I with an unredacted copy of Complainant's Exhibit 10, CMA 95419 substituted for the redacted copy.

No changes to the content of the appendices may otherwise be made and the pagination must remain the same. The parties should submit their motions and revised submissions by November 8, 2024. The failure to timely cure the deficiencies set forth herein will be deemed to constitute a waiver of the right to assert a confidential material claim in this proceeding.

Mary A. Hervey

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Mary Apostolakos Hervey
Administrative Law Judge